

CHARTER AND BYLAW REVIEW COMMITTEE (CBRC) REPORT FOR FALL ANNUAL TOWN MEETING 2025

The Charter and Bylaw Review Committee (CBRC) has a [webpage](#) on the Town's website where prior reports and information about its activities are available. These resources provide valuable background for the work conducted throughout the term of the committee from 2023 through 2025 Fall Annual Town Meeting (FATM).

All meeting agendas and minutes include links to Pegasus on Demand recordings and all related meeting materials.

Following the Spring Annual Town Meeting (SATM) of 2025, the office of the Attorney General approved Natick Bylaws previously passed. Of particular note are two bylaws that directly pertain to the conduct of Town Meeting:

- Article 1, Section 2 of the Natick Town Bylaws: The Select Board now possesses the authority to call a Special Town Meeting provided at least fourteen (14) days' notice is given prior to the proposed meeting date.
- Section 11 of Article 3 of the Natick Town Bylaws: The procedure for the Motion for the Previous Question has been revised. This motion may now be considered and deemed in order at the discretion of the Town Moderator, in accordance with the principles set out in Town Meeting Time (TMT). Additionally, the Precedence of Motions Table within Article 3 has also been updated.

Activity Since SATM 2025

After SATM, the CBRC addressed two referral motions from the 2024 FATM. The committee then reviewed the 3rd and 4th Editions of Town Meeting Time at the Town Moderator's request to assess whether updates in the 4th edition would affect current procedures or bylaws.

Meetings Held Since Spring Annual Town Meeting (SATM) 2025

The CBRC held meetings on May 5th, July 3rd, August 27th, September 9th and October 16th. The Finance Committee [Fin Com] held hearings on CBRC motions on September 16, 2025.

Special Counsel Services

The Committee continued to utilize the services of Special Counsel where warranted.

Balance of Special Counsel funding after 2025 SATM: \$57,702.37

Balance after April 2025 invoice of \$3365.70: \$53,702.37

Final Invoice: \$3437.70

Balance of Appropriation to be returned to Free Cash as the end of FATM: \$ 50,068.25

Charter and Bylaw Review Committee Final Warrant Articles

The CBRC submitted three warrant articles. Article 30 pertains to delivery of the Committee report to town meeting, any possible term extension and any possible request for additional funding. The term of the CBRC is scheduled to conclude with the dissolution of the 2025 FATM, as determined by a Town Meeting vote in Fall 2024. The committee is not requesting an extension. The Committee is not seeking an additional funding. Article 31 involves referral motions from the 2025 SATM concerning Bylaw Articles 81 and 22. Motions for Article 32 suggest amendments to Bylaw Article 3 related to Town Meeting procedures, following a review of the 3rd and 4th editions of TMT.

Article 31: Referral Motions from 2025 SATM

Article 31 encompasses the referral motions originating from the 2025 SATM), specifically relating to Bylaw Articles 81 and 22.

Article 31: Motions A

Article 31 Motion A has minor wording changes from original motion presented to 2025 SATM. It seeks to update Bylaw Article 81 Chemical Storage Tanks and Systems. Further details on this motion are on pages 160-162 of the Finance Committee Recommendation Book. The Finance Committee voted 13-0-0 to approve this motion.

The CBRC worked with the Director of Health to update this Article to clarify the Board of Health's authority over underground propane tanks, distinguishing regulations for these from above ground outdoor tanks and grill tanks. The proposed changes include propane tanks in the bylaw, enabling the Board to regulate and address health and safety concerns related to groundwater and drainage impacts caused by underground tank placement. As homeowners and developers increasingly install such tanks, the Director of Health seeks regulatory power to prevent adverse drainage effects.

Article 31: Motion B

Article 31 Motion B seeks to amend Bylaw Article 22 Town Counsel to add a new Section 9 "Special Zoning Advisory Counsel". The proposed advisory counsel would be an independent contractor to the town, familiar with Natick Zoning Bylaws. He/she could be associated with the same firm as Natick's Town Counsel. The bylaw seeks to add dedicated Advisory Legal Zoning Counsel for town agencies, with a specific focus on the Planning Board, the FinCom, and Town Meeting to assist in review of zoning motions to ensure accuracy and consistency with current bylaws. The purpose is to minimize lawsuits, prevent issues in economic development resulting from poorly worded zoning

bylaws, and eliminate the need to revisit zoning articles at future Town Meeting due to errors.

This bylaw proposal does not create an additional review for zoning articles but does provide both Town Meeting and Fin Com [as well as the Planning Board] appropriate legal counsel when Town Meeting is asked to update the town's zoning bylaws. The counsel would be appointed by the Select Board.

The Fin Com did not have a recommendation after hearing this motion.

The Committee was contacted to attend the Planning Board meeting of September 25, 2025 to discuss this motion during the portion of the Board's agenda titled:

IV. Planning Board Business • 2025 Fall Town Meeting Warrant Article Review (non-zoning articles).

The CBRC received legal advice from our Special Counsel that this agenda does not provide enough detail to meet the AG office's level of detail required for public discussion according to the Open Meeting Law. The CBRC cancelled our proposed joint meeting with the Planning Board and spoke at public speak requesting it be rescheduled to a future Planning Board meeting before FATM. The Planning Board disagreed with the opinion, held their discussion without the attendance of CBRC members at the end of their scheduled meeting. Given the disagreement, the CBRC was unable to share the rationale for this motion to the Planning Board. The Select Board held a brief review of Warrant articles in their meeting of September 29, 2025. The Select Board voted to refer this matter back to the Select Board.

Town Meeting Time, 4th Edition Review

For convenience, a copy of both the 3rd and 4th Editions of Town Meeting Time 4th are placed on file with the Town Clerk of Natick.

The Moderators' Association worked for several years to prepare the 4th Edition of Town Meeting Time, which was published in 2024. The CBRC was tasked with assessing the implications of this new edition on local TM procedures and bylaws. Natick's current bylaw directs the TM to follow Town Meeting Time 3rd Edition.

The links below were submitted to the CBRC to facilitate a thorough comparison between the two editions.

[Town Meeting Time home page](#)

[Town Meeting Time 4th Edition Appendix C: Mapping of 3rd Edition to 4th Edition Sections](#)

[Editorial Notes on Town Meeting Time 4th Edition](#)

CBRC members reviewed books and topics related to Natick's Town Meeting Management, such as consent agendas, motions, electronic presentations, remote meetings, accessibility, legality issues, and Finance Committee concerns. The Committee recommended considering four changes to Bylaw Article 3 for Town Meeting procedures including the proposal to not utilize the TMT 4th edition in future Town Meetings. The FinCom voted 13-0-0 to support all motions related to the 4th Edition of TMT. See Finance Committee Recommendation Book pages 166-172.

Article 32: Proposed Changes to Bylaw Article 3

The four motions associated with Article 32 propose amendments to Bylaw Article 3, which governs procedures at Town Meeting. These proposed changes are based on the Committee's review and comparison of the 3rd and 4th editions of "Town Meeting Time" (TMT), ensuring that Natick's TM procedures remain current and aligned with best practices. The [meeting materials](#) presented to the Fin Com on September 16th include specific pages from TMT 4th edition corresponding to these motions.

Motion A Seconding of Motions

The 4th Edition of Town Meeting Time clarifies on pages 127-128 that motions no longer require a second. The MMA identified this change in their summary. The 4th Edition continues its explanation saying that "A Moderator may choose to pause upon failing to hear a second and then may rule that the un-seconded motion fails. While most motions in Natick's Town Meeting are easily seconded, occasionally unpopular or lengthy motions fail for lack of a second, sparing the meeting unnecessary debate.

Natick's custom is to require seconds on motions. Given the language in the 4th edition, the CBRC felt this custom should be clarified to not leave it to the judgment of the moderator to hear a second. The Finance Committee voted favorable 13-0-0 to approve this motion.

Motion B: Motions of Doubtful Legality and Mandatory Conditions Precedent

Chapter 4 introduces new perspectives on motions of doubtful legality and also references the Finance Committee. The committee felt the MMA made a significant changes in the 4th Edition that could have a significant effect on Natick's Town Meeting.

The 3rd edition of TMT discusses “Motions of Doubtful Legality” and provide for three examples: 1) where town meeting seeks to do something illegal, 2) where town meeting seeks to do something beyond its powers and 3) where mandatory conditions precedent have not been met. Mandatory conditions precedent are described as required hearings or required public hearings in advance of town meeting consideration.

The new version of town meeting time keeps the three types of Motions of Doubtful Legality and adds one more example. However, the new version on pages 129 -130 rephrases the requirement for advance public hearing such that only statutory requirements apply. The new version omits reference to any hearing requirement that might be in part of a Charter or Bylaw.

Natick amended its Bylaws to require the Finance Committee to hold a public hearing where the public may be heard. However, an exception allows a two-thirds vote of Town Meeting to bypass this requirement if deemed necessary. Natick’s bylaw requiring a Finance Committee public hearing on warrant article motions is insufficient as it is not a statutory hearing.

Motion B is offered to preserve the current practice of Finance Committee hearings being required in advance of town meeting. The Finance Committee voted favorable 13-0-0 to approve this motion.

Motion C: Dissolving Town Meeting

The 4th Edition introduces an important, yet understated change to dissolving Town Meeting, which the Massachusetts Municipal Association omitted from their summary.

The 3rd Edition of TMT, [bottom of page 131 and top of page 132] states “A motion to dissolve the meeting is not in order as long as any article in the warrant remains undisposed of.” This is Natick’s current practice.

The 4th edition of TMT [second paragraph on page 213] states that “A motion to dissolve is typically not in order as long as any article in the warrant has not been acted upon or passed over.” The revised language allows an article to be skipped if it has been postponed to a future date. Other actions, such as laying an article "on the table," may also qualify as the article being "acted upon." As a result, a meeting could dissolve without having disposed of the article. The updated wording replaces "disposed of" and specifies that a motion to dissolve is not in order "as long as any article has not been acted upon or passed over."

To maintain Natick’s procedures and align with the Town Meeting’s intent to review all articles, the CBRC suggests incorporating the language from the 3rd Edition into the bylaws. The quoted text from the 3rd Edition states: “A motion to dissolve the meeting is

not in order as long as any article in the warrant remains undisposed of.” (The grammar reflects the original wording.) The Finance Committee voted favorable 13-0-0 to approve this motion.

Motion D: Changing the Reference to a new edition of Town Meeting Time

Motion D proposes updating the bylaws to reference the 4th Edition of *Town Meeting Time: A Handbook of Parliamentary Law*. It is presented last so Town Meeting can evaluate the impact of adopting the new edition based on Motions A, B, and C. The CBRC considered language to reference the "most recent" edition but chose to specify the 4th Edition to avoid unexamined changes in future editions. This approach ensures any move to a later edition will be deliberate, pausing to assess its implications for Town Meeting first. Minor updates in future editions can be reviewed at our discretion, while major changes would prompt further consideration before switching. The Finance Committee voted favorable 13-0-0 to approve this motion.

Remote and Hybrid Meeting Considerations

The committee identified several considerations regarding remote and hybrid meetings for future committees:

- Monitoring quorum during hybrid or remote meetings, including defining remote attendance and addressing situations where participants have their video off or step away from their screens.
- Procedures for introducing amendments in hybrid settings, such as whether remote members may email written motions to the Town Moderator.
- Managing and distributing written and on-screen materials to ensure all participants receive accurate versions in either hard copy or electronic format.
- Providing technology training.
- Addressing scenarios where a member loses internet connection, including the use of phones to log in.
- Maintaining accurate vote management with remote participation.
- Establishing procedures for Assistant Moderators and considering if these should be codified in a bylaw.
- Considering accessibility as hybrid meetings increase in frequency.
- Recognizing that Natick has residents whose primary language is not English, which may require translation resources for comprehensive participation.
- Ensuring public attendance and clarifying how the Moderator team manages distinctions between public attendees and those with voting or speaking rights in remote meetings.

Update on the Special Act

Representative David Linsky filed [An Act to Amend the Town of Natick Home Rule Charter](#) [House bill no 3898]. Use the bill link above to follow the progress of this legislation.

Respectfully submitted:

Paul Griesmer, Chairperson
Saul Beaumont, Vice Chairperson
Christine Weithman, Secretary
Robert Awkward
Paul Connolly
Donna McKenzie
Harriet Merkowitz